



File No.: EXP202403854

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the claimant), on January 23, 2024, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reason for the complaint is the receipt of a commercial communication, dated January 23, 2024, sent by email to a plurality of recipients (including the claimant) without using the blind carbon copy (BCC) functionality, making the addresses of the recipients visible to all of them. Along with the notification, a screenshot of the email sent from the address ***EMAIL.1 to a total of 50 recipients is provided.

By this Agency, it is recorded, as of March 8, 2024, the identification of the website "(...)", where B.B.B. is listed as the owner, with the email ***EMAIL.1 and the address ***DIRECCIÓN.1.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency, within one month, of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was sent on 20/03/2024 by certified postal mail and was returned on 22/03/2024 for "incorrect address."

THIRD: On April 23, 2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On November 20, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, for the alleged infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, with the receipt by the interested party recorded on 17/12/2024, and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution.

In this case, the initiation agreement of the sanctioning file determined the facts underlying the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not made any allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In light of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts proven in this procedure,

PROVEN FACTS

FIRST: On January 23, 2024, an email was sent from the address ***EMAIL.1 to 50 recipients (including the claimant) without using the blind carbon copy (BCC) functionality, making the addresses of the recipients visible to all of them.

SECOND: By this Agency, it is recorded, as of March 8, 2024, that B.B.B. is listed as the owner of the website "(...)" and the email ***EMAIL.1.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Data Protection.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, as it involves, among other processes, the collection and use of personal data of individuals, specifically their email address.

The party being complained against carries out this processing as the data controller, in accordance with Article 4.7 of the GDPR, as it is the one that determines the purposes and means of the processing.

III

Obligation Breached under Article 5.1 f) of the GDPR

The known facts constitute an infringement attributable to the party being complained against, classified under Article 5.1.f) of the GDPR, which stipulates the following:

Article 5. Principles relating to processing

1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by applying appropriate technical or organizational measures ("integrity and confidentiality").

The principle of confidentiality referred to in Article 5.1 f) of the GDPR requires that the processing of personal data is carried out in such a way as to ensure adequate security, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage.

In this case, the proven facts suggest that there has been a violation of this principle of confidentiality to the extent that personal data of the complainant (specifically their email address) has been exposed to third parties by being visible in an email from the complainant due to the failure to use the blind carbon copy mechanism.

IV

Classification and Qualification of the Infringement under Article 5.1 f)

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The violation of Article 5.1 f) could constitute the commission of the infringement provided for in Article 83.5 a) of the GDPR, which establishes the following:

5. Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; In this regard, the LOPDGDD, in its Article 71 "Infringements" states that:

"Infringements are constituted by the acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law."

For the purposes of the limitation period, Article 72 "Very Serious Infringements" of the LOPDGDD indicates the following:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following shall be considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679 (...)"

V

Sanction

In light of the facts presented, it is considered appropriate to impose a sanction on the party being complained against for the violation of Article 5.1.f) of the GDPR classified under Article 83.5 of the GDPR.

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, as well as the provisions of Article 76 "Sanctions and Corrective Measures" of the LOPDGDD. Specifically, Article 83 establishes the following:

Article 83. General conditions for the imposition of administrative fines

1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 is, in each individual case, effective, proportionate, and dissuasive.

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2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damage and harm they have suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the affected parties;

d) the degree of responsibility of the data controller or processor, considering the technical or organizational measures they have applied under Articles 25 and 32;

e) any previous infringement committed by the data controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor reported the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have previously been ordered against the data controller or processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under

Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial benefits obtained or losses avoided, directly or indirectly, through the infringement.

According to the specific circumstances of the present case, the penalty that corresponds to be imposed for the infringement of Article 5.1.f) of the GDPR is an administrative fine in the amount of THREE HUNDRED euros (300.00 euros).

VI

Adoption of measures

Upon confirmation of the infringement, it may be agreed to impose on the data controller the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, under which each supervisory authority may “order the data controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified timeframe...”

In the present case, the measure will consist of demonstrating, within one month from the date this resolution becomes final and enforceable, that they have adopted the measures.

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appropriate technical and organizational measures to prevent the sending of emails to multiple recipients in which all their email addresses are displayed, by using the BCC functionality or any other that ensures the confidentiality of personal data.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for an infringement of article 5.1.f) of the GDPR, classified in Article 83.5 of the GDPR, a fine of THREE HUNDRED euros (300.00 euros).

SECOND: TO ORDER B.B.B., with NIF ***NIF.1, that pursuant to article 58.2.d) of the GDPR, within one month from the date this resolution becomes final and enforceable, to prove that appropriate technical and organizational measures have been adopted to prevent the sending of emails to multiple recipients in which all their email addresses are displayed, by using the BCC functionality or any other that ensures the confidentiality of personal data.

THIRD: TO NOTIFY this resolution to B.B.B.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of article 98.1.b) of the LPACAP, within the voluntary payment period established in article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account no. IBAN:

ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the

following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

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In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with article 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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